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Case Number: 25STCV09348 Hearing Date: June 23, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

MONICA WATTERS; CHARLES TAYLOR,

Plaintiffs,

v.

MONIQUE EVANS; LIFEWALK SERVICES; and DOES 1 TO 20,

Defendants.

Case No: 25STCV09348

Hearing Date: June 23, 2026

Calendar Number: 6

Defendants Monique Evans and Lifewalk Services

move to strike the Second Amended Complaint and to dismiss this action, arguing

that Plaintiff Monica Watters failed to file by the court-ordered deadline.

The

motion is DENIED. Defendants are ordered to file and serve their responsive pleading within 30 days of this ruling.

Background

On April 1, 2025, Plaintiffs

Monica Watters ("Watters") and Charles Taylor ("Taylor") (collectively, "Plaintiffs") filed this action against Monique Evans ("Evans") and Lifewalk Services, alleging that the defendants breached the parties' contract and performed unauthorized construction on Plaintiffs' property without consent.

On May 12, 2025, Defendant Evans

filed a demurrer to the Complaint.

On May 14, 2025, Plaintiffs filed

their First Amended Complaint ("FAC") before the hearing on Evans's demurrer, asserting two causes of action for breach of contract and common counts.

On June 23, 2025, Evans filed a

demurrer to the FAC. Which Plaintiffs opposed on September 10, 2025.

On October 10, 2025, the Court

held the hearing on Evans's demurrer, determined that the demurrer was directed solely at Plaintiff Taylor's allegations, and sustained the demurrer as to that

plaintiff without leave to amend.

On November 19, 2025, the Court

approved the parties' stipulation to allow Plaintiff Watters to file a Second

Amended Complaint ("SAC"), ordering Plaintiff to file the SAC within five (5)

court days (i.e., by Wednesday, November 26, 2025).

On December 17, 2025, Watters

filed the SAC.

On January 5, 2026, Evans and

Lifewalk Services (collectively, "Defendants") filed two separate motions to

strike the SAC and dismiss the action, arguing that the SAC was untimely

because it was filed after the Court-ordered deadline. The hearings for those

motions were scheduled for March 10, 2026.

On March 10, 2026, there were no

appearances by or on behalf of either party and, therefore, the Court placed

the motions to strike off the calendar.

On March 12, 2026, Defendants filed

the instant motions to strike and dismiss. The motions are identical and revive

their argument that the SAC should be stricken and the action dismissed because

the pleading was untimely filed.

On May 28, 2026, Watters filed her

opposition.

On June 12, 2026, Defendants filed

their reply.

Legal Standard

Under Code of Civil Procedure[1],

“[t]he court may ... at any time in its discretion, and upon terms it deems

proper ...,” “[s]trike out all or any part of any pleading not drawn or filed in

conformity with the laws of this state ... or an order of the court.” (Code Civ.

Proc., § 436, subd. (b).)

In addition, “failure to file an

amended complaint within the time specified [by a court] subject[s] [a

plaintiff’s] entire action to dismissal ... under section 581, subdivision

(f)(2). Under that statute, the court may dismiss the complaint when: ‘after a

demurrer to the complaint is sustained with leave to amend, the plaintiff fails

to amend it within the time allowed by the court and either party moves for

dismissal.’ (§ 581, subd. (f)(2).)” (Leader v. Health Industries of America,

Inc. (2001) 89 Cal.App.4th 603, 613–614.)

“The decision to dismiss an action

under section 581, subdivision (f)(2) rests in the sound discretion of the

trial court” (Gitmed v. General Motors Corp. (1994) 26 Cal.App.4th

824, 827 (Gitmed).)

However, “once the amended

pleading is filed, the court must first grant a motion to strike the pleading

before the action can be dismissed.” (Gitmed, *supra*, 26

Cal.App.4th at p. 828; see also *Bai v. Yip* (2024) 107 Cal.App.5th 188,

191 (Bai) [“Under the longstanding decision of [Gitmed] the

filing of an amended complaint, even if untimely, precludes dismissal under

section 581, subdivision (f)(2), unless and until the amended complaint is

stricken”].) Once the trial court grants the motion to strike, it may ““thereafter

entertain[] a motion to dismiss the action.’ [Citation.]” (Bai, *supra*,

107 Cal.App.5th at p. 196.) (Ibid.) Conversely, if the court denies the motion

to strike the amended pleading, the motion to dismiss is moot.

Section 473(b) provides a means

for relief from dismissal entered as a result of mistake, inadvertence,

surprise, or neglect.

The mandatory provision of the

statute states: “[W]henever an application for relief is made no more than six

months after entry of judgment [dismissal, or other proceeding], is in proper

form, and is accompanied by an attorney’s sworn affidavit attesting to his or

her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting

default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

"To obtain mandatory relief under section 473, plaintiffs' counsel need not show that his or her mistake, inadvertence, surprise or neglect was excusable. No reason need be given for the existence of one of these circumstances. Attestation that one of these reasons existed is sufficient to obtain relief, unless the trial court finds that the dismissal did not occur because of these reasons." (Graham v. Beers (1994) 30 Cal.App.4th 1656, 1660.)

"The purpose of this mandatory relief provision is to alleviate the hardship on parties who lose their day in court due to an inexcusable failure to act by their attorneys.

[Citation.]" (Rodriguez v. Brill (2015) 234 Cal.App.4th 715, 723.)

Discussion

As an initial matter, Defendants

argue that Plaintiff filed the SAC "28 days" after the Court-ordered deadline

of November 26, 2025. That is incorrect. Plaintiff filed the SAC on December 17, 2025, which was 21 (not 28) days from November 26, 2025.

Defendants argue that the SAC should be struck and the case dismissed because Plaintiff's delay in filing the SAC was unjustified, showed willful noncompliance with the Court's order, and has prejudiced Defendants by prolonging the litigation and creating uncertainty regarding the operative pleading.

Defendants also argue that: "Dismissal is inappropriate if the noncompliance was the responsibility of counsel alone, rather than the party, and dismissal is appropriate only if less severe sanctions would be ineffective. *Sanchez-Garcia v. Connolly-Pac. Co.*, 2021 Cal. Super. LEXIS 159234. In this case, [however,] there is no indication that the noncompliance was solely the responsibility of counsel, and the substantial delay without justification suggests that less severe sanctions would not be effective in ensuring compliance with court orders." (Reply, p. 10:8-16.)

However, Plaintiff Watters's counsel has filed a declaration in support of the opposition testifying, that the failure to file a timely SAC was solely his responsibility for the following reasons. "On or about November 3, 2025, the parties to this action stipulated

that Plaintiff would file a SAC to address asserted pleading issues and to add causes of action including unjust enrichment and express indemnity." (Motion, Declaration of Azuka L. Uzoh, ¶ 4.) "[T]he stipulation included an 'Order upon Stipulation' which [asked] that the court [to] deem[] the proposed SAC [which was] attached [to the stipulation as Exhibit 1] as filed and served upon Defendants." (Id. ¶ 5.) "On or about November 20, 2025, [counsel] filed the stipulation, and [he] received confirmation that the stipulation has been accepted and granted by the court." (Id. ¶ 6.) "Inadvertently, [he] assumed that the court deemed the proposed SAC attached as Exhibit filed and served upon Defendants, as initially intended by the parties in the filed 'order upon stipulation.'" (Id. ¶ 7.) "On November 21, 2025, [Plaintiff's counsel] served Defense counsel, Ludlow Creary the signed Stipulation from the Court." (Id. ¶ 8.) "On or about December 17, 2025, Defense counsel contacted me via email to inquire if Defendants have been [served] the SAC." (Id. ¶ 9.) Plaintiff's counsel "immediately reviewed the stipulation and realized that the court order prescribed for Plaintiff to file the attached SAC as a separate document within five court days and Defendants shall have thirty (30) days to

respond after the filing of the SAC.” (Id. ¶

10.)

Plaintiff’s counsel “apologized for [his] inadvertence and explained that it

was an oversight on [his] part because [he] thought the SAC was already filed

and served on November 21, 2025, when [he] transmitted a copy of the

stipulation accepted by court to Defense Counsel.” (Id. ¶ 11.) On the

same day, December 17, 2025, Watters formally filed and served SAC on

Defendants. (Id. ¶ 12.) “Due to [his] mistake,

inadvertence, surprise, or excusable neglect, [counsel] failed to comply with the

court order by filing the SAC within the five (5) court days window ordered by

the court.” (Id. ¶ 13.)

Plaintiff also argues that: “If

the Court finds the late filing caused compensable burden, imposing tailored

terms short of striking (including a modest monetary sanction) rather than

depriving Plaintiff of an operative pleading. The contentions in Defendants’

motions show at most, curable scheduling inconvenience, the Court should deny

the motion to strike.” (Motion, p. 6:13-16.)

In reply, Defendants reiterate

their moving arguments and argue that “monetary sanctions alone would be

insufficient.” (Reply, p. 19:4.)

The Court exercises its discretion

to deny the motion to strike the SAC and dismiss this action based on Plaintiff's

counsel's testimony that he mistakenly believed the Court had already deemed

the SAC filed as of the date it signed the stipulation. In addition, according

to case law, a plaintiff cannot be deemed to have abandoned their case if they

served the amended complaint on the defendant. (See *Gitmed*, supra,

26 Cal.App.4th at p. 829 ["All of the cases relied upon by respondent relating

to notice deal with the concept that, by failing to amend, the plaintiff may be

implied to have abandoned the case or to have admitted that no further

amendment is possible. That implication cannot be made when the amended

pleading has been served"].) Here, a copy of the SAC had already been served as

part of the parties' stipulation before the Court issued its order. Plaintiff's

counsel has also testified that he formally served the SAC on December 17,

2025, once he was aware of his mistake. California "law strongly favors trial

and disposition on the merits" (*New Albertsons, Inc. v. Superior Court*

(2008) 168 Cal.App.4th 1403, 1420.) That policy prevails here given the facts

presented.

Therefore, Defendants' motion to

strike and dismiss is denied. However, given the delay in filing the SAC, the

Court shall give Defendants 30 days from the date of this ruling to file their

responsive pleading.

[1] All statutory references are to

the Code of Civil Procedure unless otherwise stated.